

PETITION - REDUCE A FELONY TO A MISDEMEANOR

IN THE COURT
(Sentencing court - see the filing instructions in this packet)

IN RE: Maria-Alejandra O'Shaughnessy-Whitfield,
PETITIONER.

Case number, if the court assigns one at filing:

.....

APPLICATION TO AMEND JUDGMENT TO A MISDEMEANOR, I.C. Sec. 19-2604(2)

The petitioner, Maria-Alejandra O'Shaughnessy-Whitfield, applies to this court under I.C. Sec. 19-2604(2) and states:

A. THE RELIEF THIS PETITION ASKS FOR, AS THE COMMITTED RECORD STATES IT

The court may amend a judgment of conviction from a term in the custody of the Board of Correction to confinement in a penal facility for days served before sentencing, and the amended judgment may be deemed a misdemeanor conviction.

B. THE PETITIONER

Date of birth: 1968-12-31

C. THE FACTS OF THIS MATTER, WHICH THE PETITIONER SUPPLIES FROM THE RECORD

Each item below is printed in the words the committed record uses for it. Fill each one from the record itself.

[C1 - judgment type] Does your judgment of conviction impose a term in the custody of the Board of Correction?

.....

.....

[C2 - days served before sentencing] How many days did you serve before sentencing?

.....

.....

[C3 - sex offender registration] Does the offense require sex offender registration under Sec. 18-8304? Those offenses are excluded from this route.

.....

.....

D. THE REQUEST

The petitioner asks the court to grant the relief described in paragraph A, under I.C. Sec. 19-2604(2).

DATE SIGNATURE OF PETITIONER

(The petitioner signs and dates this petition personally. Nothing on this page is signed or dated for the petitioner.)

PRINTED NAME: Maria-Alejandra O'Shaughnessy-Whitfield

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Route: obligation:track-only:ID:id_felony_reduction

FILING INSTRUCTIONS - REDUCE A FELONY TO A MISDEMEANOR

This page is for Maria-Alejandra O'Shaughnessy-Whitfield.

WHAT THIS SET OF PAPERS IS

Application to Amend Judgment to a Misdemeanor, I.C. Sec. 19-2604(2).

The court may amend a judgment of conviction from a term in the custody of the Board of Correction to confinement in a penal facility for days served before sentencing, and the amended judgment may be deemed a misdemeanor conviction.

WHERE IT GOES

Sentencing court

The application is made to the court that entered the judgment of conviction. County practice on Sec. 19-2604 applications is unverified.

Venue: The sentencing court.

WHAT IT COSTS, AND WHETHER A WAIVER EXISTS

No committed record this packet binds states a filing fee for this route - the record says: "The source review does not state a filing fee for this application.". The office that answers it is the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.). No committed record states a fee-waiver procedure for this route - the record says: "The source review does not address a fee waiver for this application.". Ask the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.) for its own fee-waiver application.

WHO MUST BE SERVED

No committed record this packet binds states a service requirement for this route - the record says: "Blocked pending confirmation. The addendum lists service among the items counsel must confirm.". The office that answers who must be served, and how, is the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.). Notice: the record says "The source review does not state a notice requirement for this application.", so the clerk's office of Sentencing court (the venue the registry records for this route: The sentencing court.) is the office that answers it.

WHAT THE RECORD SAYS YOU MUST KNOW

- A reduction under Sec. 19-2604(2) does not hide the record and is not an expungement.

WHEN TO STOP AND GET HELP INSTEAD OF FILING

- A Sec. 19-2604 dismissal already happened or is being contemplated, because the sequencing changes what relief remains.

- The record involves sex offender registration.
- The record is federal, tribal, or from another state.
- Immigration, professional licensing, peace officer employment, or firearm consequences are in play.

THE PAGES IN THIS SET

- id_felony_reduction-primary-filing-1: the composed petition, on this route's own statutory ground (Reduce a felony to a misdemeanor)

Route: obligation:track-only:ID:id_felony_reduction